



CHAPTER xxxii.

An Act for consolidating the capital of and for conferring further powers on the Sheppy Gas Company. A.D. 1904.

[24th June 1904.]

WHEREAS by the Sheppy Gas Act 1871 (in this Act referred to as "the Act of 1871") the Sheppy Gas Company (in this Act referred to as "the Company") were incorporated for the purpose (amongst other things) of supplying gas within the limits of supply mentioned in the Act of 1871 :

And whereas it is expedient that the limits of supply as prescribed by the Act of 1871 should be more clearly defined so as to include the borough of Queenborough the urban district of Sheerness and the whole of the Isle of Sheppy in the county of Kent :

And whereas the share capital of the Company authorised by the Act of 1871 consists of—

- (A) Four thousand pounds four per centum per annum preference A shares ;
- (B) Twenty-one thousand pounds original capital B shares entitled to a standard dividend of ten per centum per annum ;
- (c) Fifteen thousand pounds additional capital C shares raised under the Act of 1871 and limited to a standard dividend of seven per centum per annum ;

the whole of which capital has been subscribed and fully paid up and the Company have borrowed on mortgage of the undertaking the sum of four thousand pounds :

And whereas the Company have a reserve fund amounting to a sum of four thousand pounds one half of which is invested in

A.D. 1904. Consols and the remainder forms part of the working capital of the Company :

And whereas it is expedient that the existing ordinary B and C shares aforesaid in the capital of the Company be consolidated and converted in the manner herein-after set forth :

And whereas the demand for gas within the Company's limits of supply has increased and is increasing and it is expedient that additional capital should be provided for the purposes of the undertaking :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

Short title and
commencement
of Act.

1. This Act may be cited for all purposes as the *Sheppy Gas Act 1904* and shall come into operation on the passing hereof.

Incorporation
of Acts.

2. The following Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act (namely) :—

(1) The Companies Clauses Acts 1845 to 1889 (except the provisions with respect to the conversion of borrowed money into capital and except Part IV. of the Companies Clauses Act 1863) :

(2) The Gasworks Clauses Act 1847 :

Provided that section 13 of that Act shall be read as if the words "or any premises" were inserted after the words "private building" and that section 35 of that Act shall be read and construed as if the words from "in case the whole" down to "have been paid" were omitted therefrom and as if the expression "the prescribed rate" included the standard rate of dividend authorised by this Act or such rate as reduced or increased in accordance with the provisions of this Act together with any sum which under the provisions of this Act may be carried to the insurance fund :

(3) The Gasworks Clauses Act 1871.

3. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith shall have the same respective meanings unless there be something in the subject or context repugnant to such construction And—

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Interpreta-
tion.

The expression "the Company" shall mean the Sheppy Gas Company;

The expressions "the works" "the gasworks" and "the undertaking" shall respectively mean the gasworks and works connected therewith vested in or authorised to be made or maintained by the Company and any improvement thereof which they may construct under the powers of this Act or the Act of 1871 and the lands buildings estate right title property privileges and effects and the undertaking of the Company and every part thereof respectively;

The expression "the Act of 1871" shall mean the Sheppy Gas Act 1871.

4. The limits of this Act for the supply of gas shall be the whole of the Isle of Sheppy in the county of Kent.

Limits of
Act.

5. As from the first day of January one thousand nine hundred and five the terms and conditions upon which the shares in the existing ordinary capital of the Company other than preference shares shall by force of this Act only and without any further requisite be consolidated and converted into sixty-three thousand pounds consolidated ordinary stock bearing a maximum rate of dividend of five per centum per annum which shall be distributed amongst the holders at such date of the existing shares according to the following scales respectively (that is to say):—

Consolida-
tion of ordi-
nary shares.

For every one hundred pounds of ordinary ten-pound shares entitled to a dividend not exceeding the rate of ten per centum per annum two hundred pounds consolidated ordinary stock;

For every one hundred pounds of ordinary ten-pound shares entitled to a dividend not exceeding the rate of seven pounds per centum per annum one hundred and forty pounds consolidated ordinary stock;

and so in proportion for any less quantity than one hundred pounds of the aforesaid existing shares in the capital of the Company and as from that date there shall be by virtue of this

A.D. 1904. Act created such a nominal amount of consolidated ordinary stock of the Company as shall be necessary for the purpose of carrying into effect such consolidation and conversion and the amounts of consolidated stock to which the holders of such existing shares by virtue of this Act respectively become entitled in substitution for such shares shall be vested in such holders as from the aforesaid first day of January one thousand nine hundred and five and shall be forthwith registered in their respective names in the books of the Company.

Consolidated stock to be held upon same trusts as shares for which it is substituted.

6. Consolidated ordinary stock shall be held in the same rights on the same trusts and subject to the same powers provisions charges and liabilities as those in upon or to which the existing shares for which the consolidated ordinary stock is substituted were held or were subject to immediately before the said first day of January one thousand nine hundred and five and shall be dealt with applied and disposed of accordingly and so as to give effect to and not to revoke any deed will or other instrument disposing of or affecting any such existing shares and trustees executors or administrators or incapacitated parties may accept consolidated ordinary stock in substitution for existing shares held by them in the capital of the Company and may subject to the provisions of this Act retain dispose of or otherwise deal with the same as fully and freely in all respects as they might have retained disposed of or otherwise dealt with such existing shares.

Certificates to be exchanged.

7. The Company shall call in the certificates of the shares for which consolidated ordinary stock shall be substituted by virtue of this Act and shall issue in exchange for those certificates to the respective proprietors thereof free of charge certificates of consolidated ordinary stock of the respective amounts to which those proprietors are by this Act respectively entitled but no proprietor shall be entitled to a certificate of the consolidated ordinary stock so substituted for the existing shares held by him until he shall have delivered up to the Company to be cancelled the existing certificate for which such certificate is to be substituted or shall have proved to the satisfaction of the directors of the Company the loss or destruction thereof Provided always that until the issue of the certificates of such consolidated ordinary stock the existing certificates for which new certificates are to be substituted shall according to the amounts of consolidated ordinary stock to be substituted by virtue of this Act for the existing shares which they respectively represent have and possess

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the same rights and advantages as if they were certificates for those respective amounts of consolidated ordinary stock which are to be so substituted for such existing shares but if any holder of existing shares of the Company neglect or omit to send or deliver to the Company his existing certificate for the period of one year after notice in writing sent by post to the address appearing in the shareholders "Address Book" the Company may suspend the payment of any dividend declared or made payable upon or in respect of the consolidated ordinary stock so held by him until such existing certificate is sent or delivered to the Company or is proved to the reasonable satisfaction of the directors of the Company to have been lost or destroyed.

8. The transfer books of the Company shall be closed from the fifteenth day of December one thousand nine hundred and four to the first day of January one thousand nine hundred and five and all transfers transmissions or other dispositions of any existing shares in the capital of the Company as existing up to the conversion thereof into consolidated ordinary stock by virtue of this Act and which shall not have been registered before the fifteenth day of December one thousand nine hundred and four shall as between the Company and the party claiming under the same but not otherwise be considered as made subsequently to the thirty-first day of December one thousand nine hundred and four and shall after such conversion and notwithstanding this Act be valid and have due effect given to them respectively as transfers or transmissions of the respective amounts of consolidated ordinary stock which the shares thereby expressed to be transferred transmitted or disposed of represent or which are or may be substituted for the same under the provisions of this Act although the instrument transferring transmitting or disposing thereof respectively shall describe the same by the name or denomination which the shares transferred transmitted or disposed of had before such conversion and the bequest of or any covenant or provision of any deed or agreement relating to any specific nominal amount of any such existing shares converted by this Act into stock of larger nominal amount shall be held to apply to a nominal amount of consolidated ordinary stock which is substituted for such existing shares equal to the amount into which such existing shares shall have been converted under the provisions of this Act.

Transfers of
shares by
present name
to be valid.

9. Consolidated ordinary stock shall be transferable in amounts of two pounds or multiples of two pounds.

Consolidated
ordinary stock to
be transferable
in multiples of
two pounds.

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Application
of certain
provisions of
Companies
Clauses Act
1845.

10. Subject to the provisions of this Act the following provisions incorporated with this Act of the Companies Clauses Consolidation Act 1845 (that is to say) sections 11 to 13 and 62 and 63 shall extend and apply mutatis mutandis to consolidated ordinary stock and sections 18 to 20 of the said Act shall be deemed and construed to include and apply to such stock and the dividend thereon as if such stock and dividend had been expressly named in the said sections.

Rights of
holders of
consolidated
stock.

11. Holders of consolidated ordinary stock shall be entitled to participate in the dividends and profits of the Company according to the amount of their respective interests and subject to the provisions of this Act such interests shall in proportion to the amount thereof confer on the respective holders of such stock the same privileges and advantages as would have been conferred by ordinary shares of equal amount in the capital of the Company but so that none of such privileges or advantages except participation in the dividends and profits of the Company shall be conferred by any aliquot part of such amount of consolidated ordinary stock as would not if existing in such shares have conferred such privileges or advantages.

Additional
capital.

12. The Company may from time to time raise additional capital to such nominal amount as shall be sufficient to produce (including the premium (if any) which may be obtained on the sale thereof) the sum of thirty thousand pounds by the creation and issue of consolidated ordinary stock or of preference shares or stock or wholly or partly by one or more of those modes respectively.

Shares not
to vest till
fully paid.

13. The Company shall not issue any share in the additional capital by this Act authorised of less nominal value than ten pounds nor shall any such share or any stock in such capital vest in the person or corporation accepting the same unless and until the full price of such share or stock together with any premium obtained upon the sale thereof shall have been paid in respect thereof.

New shares
or stock to
be offered by
auction or
tender.

14. Notwithstanding anything in this Act contained the Company shall when any shares or stock created under the powers of this Act are to be issued and before offering the same to the holder of any other shares or stock in the Company and whether the ordinary shares or ordinary stock of the Company are or is at

a premium or not offer the same for sale by public auction or by tender in such manner at such times and subject to such conditions of sale as the Company shall from time to time determine Provided that at any such sale no single lot shall comprise more than one hundred pounds nominal value of shares or stock and that the reserve price put upon such shares or stock shall not be less than the nominal amount thereof and notice of the amount of such reserve price shall be sent by the Company in a sealed letter to the Board of Trade not less than twenty-four hours before the day of auction or the last day for the reception of tenders as the case may be and such letter may be opened after such day of auction or last day for the reception of tenders and not sooner and provided that no priority of tender shall be allowed to any holder of shares or stock in the Company except that if any bid or offer by tender of any holder or holders of shares or stock in the Company be the same in amount as any bid or offer made by any other person the bid or offer of such holder or holders of shares or stock in the Company may be accepted in preference and preference may in like manner be given to any employee or gas consumer whose bid or offer is the same in amount as any bid or offer made by any other person not being a holder of shares or stock in the Company.

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15. The intention to sell any such shares or stock by auction or by tender shall be communicated in writing to the town clerk of Queenborough the clerk of the Sheerness Urban District Council and to the clerk of the Sheppy Rural District Council respectively and to the secretary of the committee of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and notice of such intention shall be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the Isle of Sheppy.

Notice to be given as to sale of shares or stock.

16. When any shares or stock created under the powers of this Act have been offered for sale by auction or tender and not sold the same shall be offered at the reserve price put upon the same respectively for the purpose of sale by auction or tender to the holders of ordinary shares or ordinary stock of the Company in manner provided by the Companies Clauses Act 1863 Provided always that any shares or stock so offered and not accepted within the time prescribed by the said Act shall again be offered for sale by public auction or by tender in the manner and subject to the provisions of this Act with respect to the sale of shares or stock

Shares or stock not sold by auction or by tender to be offered to shareholders.

A.D. 1904. — created under the powers of this Act and the reserve put upon such shares or stock may upon such second auction or tender if the directors of the Company think fit be less than the nominal amount thereof and any stock or shares not then sold shall again be offered to the holders of ordinary shares or ordinary stock at the last-mentioned reserve price and so from time to time until the whole of such shares or stock is sold.

Purchase-money of capital sold to be paid within three months.

17. It shall be one of the conditions of any sale of shares or stock under this Act that the full price thereof including any premium given by any purchaser at such sale shall be paid to the Company within three months after such sale.

Application of premium arising on issue of shares or stock.

18. Any sum of money which shall arise from the issue of any such shares or stock by way of premium after deducting therefrom the expenses of and incident to such issue shall not be considered as profits of the Company but shall be expended in extending or improving the works of the Company or in paying off money borrowed or owing on mortgage by the Company and shall not be considered as part of the capital of the Company entitled to dividend. Provided that in any case where a power to raise money by borrowing or to create a reserve fund is made proportionate to the paid up capital the premium received from the sale of shares or stock by auction or tender as herein-before provided shall for such purpose be reckoned as part of the paid-up capital.

Power to borrow.

19.—(1) The Company may borrow on mortgage of the undertaking in respect of the consolidated and converted ordinary stock of sixty-three thousand pounds any sums not exceeding in the whole twenty-one thousand pounds inclusive of the sum of four thousand pounds already borrowed on mortgage by the Company under their existing powers. Section 34 of the Act of 1871 is hereby repealed except in so far as its powers have been exercised by the borrowing of the before-mentioned sum of four thousand pounds.

(2) In addition to the sum of twenty-one thousand pounds which the Company are authorised to borrow by subsection one of this section the Company may subject to the provisions of this Act borrow on mortgage of the undertaking any sum or sums not exceeding in the whole one-third part of the amount of the additional capital by this Act authorised to be raised and at the time actually issued by shares or stock but no part thereof shall be borrowed until the whole of the shares or stock at the

time issued together with the premium (if any) realised on the sale thereof shall have been fully paid up and the Company have proved to the justice who is to certify under the fortieth section of the Companies Clauses Consolidation Act 1845 before he so certifies that such shares and stock and premium (if any) have been issued and fully paid up and upon production to such justice of the books of the Company and of such other evidence as he shall think sufficient he shall grant a certificate that the proof aforesaid has been given which certificate shall be sufficient evidence thereof.

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20. The mortgagees of the Company may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver. In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than five thousand pounds in the whole.

Appoint-
ment of
receiver.

21. The Company may create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 but notwithstanding anything therein contained the interest of all debenture stock and of all mortgages at any time after the passing of this Act created and issued or granted by the Company under any previous Act or this or any subsequent Act shall subject to the provisions of any subsequent Act rank *pari passu* (without respect to the dates of the securities or of the Acts of Parliament or resolutions by which the stock and mortgages were authorised) and shall have priority over all principal moneys secured by such mortgages. Notice of the effect of this enactment shall be endorsed on all mortgages and certificates of debenture stock issued after the passing of this Act.

Debenture
stock.

22. All money to be raised by the Company on mortgage or by the issue of debenture stock shall have priority against the Company and the property from time to time of the Company over all other claims on account of any debts incurred or engagements entered into by them after the passing of this Act. Provided always that this priority shall not affect any claim against the Company or their property in respect of any rent-charge granted or to be granted by them in pursuance of the Lands Clauses Acts or in respect of any rent or sum reserved by or payable under any lease granted or made to the Company in pursuance of any Act relating to the Company which is entitled

Priority of
mortgages
and debenture
stock
over other
debts.

A.D. 1904. — to rank in priority to or *pari passu* with the interest or dividend on their mortgages or debenture stock.

Existing mortgages to have priority.

23. All mortgages granted by the Company in pursuance of the Act of 1871 and subsisting at the passing of this Act shall during the continuance thereof have priority over all mortgages granted in pursuance of this Act but nothing in this section contained shall affect the priority of any debenture stock at any time created and issued by the Company.

Limit of interest on borrowed money.

24. The Company shall not without the consent of the Board of Trade pay interest at a higher rate than five pounds per centum per annum in respect of any moneys raised by the creation and issue of debenture stock under the authority of this Act.

Receipt in case of persons not *sui juris*.

25. If any money is payable by the Company to a shareholder stockholder mortgagee or debenture stockholder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Company.

Application of money.

26. All moneys raised under this Act whether by shares stock debenture stock or borrowing shall be applied for the purposes of this Act and for the general purposes of the Company being in all cases purposes to which capital is properly applicable and the Company may apply to the purposes of this Act to which capital is properly applicable any moneys they may have already raised or are authorised to raise.

Insurance fund.

27. If the clear profits of the undertaking in any year amount to a larger sum than is sufficient to pay the dividend on the preference shares and on the ordinary capital of the Company at the authorised rates the excess beyond the sum necessary for that purpose may to the extent of one per centum per annum upon the paid-up capital of the Company be invested in Government or other securities and the dividends and interest arising from such securities shall also be invested in the same or the like securities in order that the same may accumulate at compound interest until the fund so formed amounts to a sum equal to one-twentieth of the paid-up capital of the Company which sum shall form an insurance fund to meet any extraordinary claim demand or charge which may at any time arise against or fall upon the Company from accident strikes or other circumstances which in the opinion of a court of summary jurisdiction due care and management could not have prevented and if such fund be at any time reduced it may thereafter be again made up to the said sum and so from

time to time as often as such reduction shall happen Provided A.D. 1904.
that—

- (1) When and so often as the said fund shall reach one-twentieth part of the paid-up capital the interest thereon shall be carried to the credit of the fund available for dividend;
- (2) Resort may be had to the insurance fund to meet any extraordinary claim demand or charge as aforesaid although such fund may not at the time have reached or may have been reduced below the full amount of one-twentieth as aforesaid.

For the purposes of this section and the next section the sum of sixty-three thousand pounds consolidated ordinary stock (representing the B and C shares) shall be deemed to be part of the paid-up capital.

28. If the clear profits of the undertaking in any year amount to a larger sum than is sufficient to pay the dividend on the preference shares and on the ordinary capital of the Company at the authorised rates the Company out of the excess may set apart such sum as they shall think fit not exceeding one per centum upon the paid-up capital of the Company and all sums (if any) so set apart by the Company together with the reserve fund of the Company existing at the passing of this Act may be invested in Government or other securities or may be allowed to remain in the undertaking as part of its working capital and the dividends and interest arising from such securities may also be invested in the same or the like securities in order that the same may accumulate at compound interest and the fund so formed shall be called "the reserve fund" and shall be applicable to the payment of dividend in any year in which the clear profits of the Company shall be insufficient to enable the Company in such year to pay the dividend at the authorised rate on the ordinary capital of the Company and if such fund be at any time reduced it may thereafter be again made up to the said sum and so from time to time as often as such reduction shall happen and save as in this Act provided no sum shall in any year be carried by the Company to any reserve fund.

Reserve
fund.

29. If the clear profits of the undertaking in any year amount to a larger sum than is sufficient to pay the dividend on the preference capital and on the ordinary capital of the Company at the authorised rates the excess or such portion of it as is

Application
of excess of
profits over
authorised
dividend.

A.D. 1904. not carried to the insurance or reserve funds shall be carried to the credit of the divisible profits of the undertaking for the next following year.

Ordinary meetings.

30. The first ordinary meeting of the Company after the passing of this Act shall be held within twelve months therefrom and the subsequent ordinary meetings of the Company shall be held once in every year in the month of February or March or at such other time as shall be appointed for that purpose by resolution of a general meeting.

Quorum for meetings of Company.

31. The prescribed quorum for a general meeting of the Company shall be ten shareholders present in person or by proxy holding not less in the aggregate than two thousand pounds nominal value in the capital of the Company.

Scale of voting.

32. The prescribed scale of voting shall be one vote for every complete twenty pounds of the aggregate amount of stock but except as otherwise expressly provided by the resolution creating the same no person shall be entitled to vote in respect of preference stock. Provided that no member shall be entitled to vote at any meeting in respect of any stock that he has acquired by transfer unless he has been possessed of the stock in respect of which he claims to vote for at least three months previously to the time of holding the meeting.

Extraordinary meetings may be summoned.

33. The number of stockholders who may convene an extraordinary meeting of the Company shall be not less than twenty holding in the aggregate not less than ten thousand pounds nominal value in the capital of the Company.

Number of directors.

34. The number of directors shall be six but the Company may vary the number provided that the number be not at any time after the first ordinary meeting more than seven nor less than four.

Qualification of directors.

35.—(1) The qualification of a director shall be the possession in his own right of not less than two hundred pounds nominal value in the ordinary capital of the Company.

(2) No person shall be disqualified from becoming or continuing a director of the Company by reason of his or any partner of his being or becoming interested in any contract with the Company either in his own behalf or as a member of any other company corporation local authority or partnership but no such person shall as a director vote in respect of any question as to any such contract.

(3) If any of the directors shall be made bankrupt or shall go to reside abroad or shall become lunatic or of unsound mind or shall neglect to attend a meeting of directors for three months (unless such neglect to attend be occasioned by illness or by any other reasonable cause allowed by the directors) then in any of the cases aforesaid the office of such director shall become vacant and thenceforth he shall cease from voting or acting as a director. A.D. 1904.

(4) The continuing directors may act notwithstanding any vacancy in the number of directors.

36. The quorum for a meeting of directors shall be four if there be seven or six directors but otherwise three. Quorum.

37. After the passing of this Act any person not being a retiring director wishing to be elected a director shall not be eligible for election unless notice be given to the secretary or left at the principal office of the Company ten days at least before the day of election that such person will be proposed to be elected a director and the secretary shall during such ten days and on the day for election fix a copy of every such notice so delivered on some conspicuous place in such office. Notice to be given on desiring to be elected a director.

38. In addition to the powers which the directors may exercise under the Companies Clauses Acts 1845 to 1889 they may determine the remuneration of the secretary of the Company. Power for directors to determine remuneration of secretary.

39. The directors may in any year without calling a meeting of shareholders for the purpose declare an interim half-yearly dividend out of the then ascertained profits of the Company Provided that the amount of any interim half-yearly dividend so declared shall not exceed in any one half-year one half of the amount of the standard dividend. Interim dividend.

40. The directors may close the register of transfers for a period not exceeding fourteen days previous to the declaration of any interim dividend and they may fix a day for closing the same of which seven days' notice shall be given by advertisement in some newspaper published or circulating in the district within which the Company's principal place of business is situate and any transfer made during the time when the transfer books are so closed shall as between the Company and the person claiming under the same but not otherwise be considered as made subsequently to the declaration of any such dividend. Closing of transfer books previous to declaring interim dividend.

41. If any person is required by the Company to give to them security for the payment of the price or rent of a meter the Company to pay interest on

A.D. 1904. money deposited as security for gas meters. Company shall pay interest at the rate of four per centum per annum on every sum of ten shillings deposited by way of such security for every six months during which the same remains in their hands Provided that the Company shall not require any deposit in respect of a prepayment meter.

Exemption of gas fittings from distraint.

42. Any engines meters stoves ranges pipes fittings and other apparatus and appliances let for hire under the provisions of this Act or the Act of 1871 shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under any process of any court or any proceedings in bankruptcy against the persons in whose possession the same may be Provided that such engines meters stoves ranges pipes fittings and other apparatus and appliances have upon them a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Company as the actual owners thereof.

As to construction and placing of pipes &c. between mains and meters.

43. In order to enable the Company to ensure a satisfactory supply of gas to their consumers the following provisions shall have effect :—

- (1) The Company may specify the size and material of the pipes with the fittings thereof which are to be laid by the consumer in the first instance or on the occasion of any renewal between the Company's mains and the meter and (so far as the same are intended to be covered over) on the consumer's premises :
- (2) The Company may if they think fit make different specifications for different classes of premises having regard to the probable maximum consumption of gas thereon at any one time :
- (3) The specifications shall be published twice in some newspaper circulating within the limits of this Act and a copy thereof shall be kept exhibited in the office of the Company :
- (4) Every meter to be used in a new building or a building not previously supplied with gas or in connexion with a new or substituted pipe laid by the consumer between the main and the consumer's meter shall be placed as near as reasonably practicable to the Company's main but within the outside wall of the building :

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(5) When any such pipe or meter as aforesaid has been laid or placed notice thereof shall be given to the Company and the pipe shall not be covered over until after the expiration of twenty-four hours from the service of such notice on the Company. Any officer of the Company duly appointed may between nine o'clock in the morning and five o'clock in the afternoon attend and inspect such pipes (with their fittings) and meter and if the officer is not permitted to make the inspection or if the pipes or fittings are not according to the Company's specification or if the meter is not placed as required by this section the Company may refuse to supply gas to the premises until the provisions of this section have been complied with :

(6) Any person to whom the Company refuses a supply of gas under the provisions of this section may appeal to a petty sessional court against such refusal and the court may after hearing the parties and considering any questions as to the reasonableness of the Company's specification make such order as seems to them proper in the circumstances and may order by which of the parties the costs of and incident to the appeal shall be paid.

44. Every consumer of gas supplied by the Company who uses a gas engine shall if required to do so by the Company use an anti-fluctuator and shall at all times at his own expense keep such anti-fluctuator in proper order and if any consumer shall make default in complying with the provisions of this section the Company may cease to supply him with gas. The Company shall have access to and be at liberty to take off remove test inspect and replace any such anti-fluctuator at all reasonable times such taking off removal testing inspecting and replacing to be done at the expense of the Company if the anti-fluctuator be found in proper order but otherwise at the expense of such consumer.

Anti-fluc-
tuators for
gas engines.

45. The Company may lay down place repair alter remove and renew mains pipes and culverts within the limits of this Act for the purpose of procuring conducting or disposing of any oil or other materials used by them in or resulting from the manufacture of gas or any residual products thereof or for any purpose connected with their business and the provisions of the Gasworks Clauses Act 1847 with respect to breaking up of streets for the purpose of laying pipes and for the protection of pipes when laid

Power to
utilise pipes
for auxiliary
purposes.

A.D. 1904. shall so far as applicable extend and apply to the laying down and placing repairing altering or removing and protection of such mains pipes and culverts.

Gas consumers to give notice to Company before removing.

46. Twenty-four hours' notice in writing shall be given to the Company by every gas consumer before he shall quit any premises supplied with gas by meter by the Company and in default of such notice the consumer so quitting shall be liable to pay to the Company the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date upon which any subsequent occupier of such premises shall require the Company to supply gas to such premises whichever shall first occur Notice of the effect of this enactment shall be stated in or endorsed upon every demand note for gas rent payable to the Company.

Notice of discontinuance.

47. A notice to the Company from a consumer for the discontinuance of a supply of gas shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office for the time being of the Company.

Power to refuse to supply persons in debt for other premises.

48. If a person requiring a supply of gas from the Company has previously quitted premises at which gas was supplied to him by the Company without paying to them all gas or meter rent due from him to the Company they may refuse to furnish to him a supply of gas until he pays the same.

Period of error in defective meters.

49. In the event of any meter used by a consumer of gas being tested in manner provided by the Sale of Gas Act 1859 and being proved to register erroneously within the meaning of the said Act such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter and the amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Company shall be paid by or to the Company to or by the consumer as the case may be and shall be recoverable in the like manner as gas rents are recoverable by the Company.

No penalty in case of unavoidable cause.

50. No penalty shall be incurred by the Company for neglect or refusal to give a supply of gas in accordance with the provisions of this Act or for insufficiency of pressure defect of illuminating power or excess of impurity in the gas supplied by them in any case in respect of which the court having cognizance of the case are of opinion that such neglect refusal insufficiency

defect or excess was caused by circumstances beyond the control of the Company or was of so slight or unimportant a character as not materially to affect the value of the supply. Provided that the want of sufficient funds shall not be held to be a circumstance beyond the control of the Company. A.D. 1904.

51. The Company may on the application of the owner or occupier of any premises within the limits of this Act abutting on or being erected in any street laid out but not dedicated to public use supply such premises with gas and may lay down take up alter relay or renew in across or along such street such pipes and apparatus as may be requisite or proper for the furnishing such supply. Power to lay pipes in streets not dedicated to public use.

52. If any difference arises between the Company and any railway canal or other company whose lands or works the Company have power to cross under the authority of this Act as to the mode of laying down repairing altering or enlarging their mains pipes or other works or the facilities to be afforded for the same the same shall be settled by an engineer to be appointed by the Board of Trade at the request of either party. Differences with railway and other companies.

53. The Company may purchase or take on lease dwelling-houses for persons in their employ and may erect maintain and let dwelling-houses for such persons upon the lands for the time being belonging to or leased by the Company. Dwelling-houses for persons in Company's employ.

54. Proceedings for the recovery of any demand not exceeding one hundred pounds made under the authority of this Act whether provision is or is not made for the recovery in any specified court or manner may be taken in the county court. Recovery of demands under one hundred pounds.

55. Sections 35 39 40 41 42 43 and 46 of the Act of 1871 are hereby repealed. Repeal in part of Sheppy Gas Act 1871.

56. All costs charges and expenses of and incident to the applying for preparing obtaining and passing of this Act and otherwise in relation thereto shall be paid by the Company. Costs of Act.

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